

The Goa Ferries (Regulation of Issue of Tickets) Rules, 1990

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State of Goa - Act

The Goa Ferries (Regulation of Issue of Tickets) Rules, 1990

GOA

India

The Goa Ferries (Regulation of Issue of Tickets) Rules, 1990

Rule THE-GOA-FERRIES-REGULATION-OF-ISSUE-OF-TICKETS-RULES-1990 of 1990

Published on 5 November 1990

Commenced on 5 November 1990

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The Goa Ferries (Regulation of Issue of Tickets) Rules, 1990

Published vide Notification No. 7/18/90-IWT, dated 5th November, 1990

7.

/18/90-IWT. - In exercise of the powers conferred by section 11 of the Goa Ferries Act, 1990 (Act 9 of 1990), the Government of Goa hereby makes the following rules, namely:-

1.

Short title, extent and commencement.

(1)

These rules may be called the Goa Ferries (Regulation of Issue of Tickets) Rules, 1990.

(2)

They shall extend to the whole of the State of Goa.

(3)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise require,-

(a)

'Act' means the Goa Ferries Act, 1990 (Act 9 of 1990);

(b)

'Form' means a form appended to these rules;

(c)

'Inspecting Authority' means-

(i)

the Captain of Ports, Deputy Captain of Ports, Senior Workshop Superintendent Principal of Maritime School, Administrative-cum-Accounts Officer, Traffic Inspector and the Inspectors of the Captain of Ports Department or of the River Navigation Department;

(ii)

the officers of the Vigilance Department not below the rank of Vigilance Officer; and

(iii)

the officers of the Police Department not below the rank of Sub-Inspector of Police;

(iv)

[in the case of public ferry plying in the Channel between the State of Goa and any other State, such Officer of that other State Government, which the Government of Goa, may, in consultation with that other State Government, specify in this behalf, by notification in the Official Gazette.]

[Inserted by the Goa Ferries (Regulation of Issue of Tickets) (Amendment) Rules, 1993.]

(d)

'section' means a section of the Act;

(e)

'ticket' means a ticket including a pass issued on payment of toll fixed for carrying a person, vehicle or cargo across a public ferry;

(f)

Words and expressions used and not defined in these rules but defined in the Act shall have the same meanings respectively assigned to them in the Act.

3.

Issue of Tickets.

(1)

Wherever the Government has fixed any toll for any public ferry, the ticket collector shall issue a ticket bearing Sr. No., date and facsimile signature of the Captain of Ports to any person who pays the toll for crossing the public ferry.

(2)

Any person who has paid the toll fixed for the journey by purchasing a ticket shall retain the same till the journey is completed.

4.

Duties of Ticket Collector.

- A ticket collector shall,

(i)

report to the public ferry to which he has been posted at the commencement of his shift in order to relieve the person on duty after taking over the charge by signing the statement of daily traffic earnings in Form A and obtaining requisite number of tickets of various denominations alongwith a cash of Rs. 20/-,

(ii)

while on duty wear such uniform, badge or identity card, as may be issued by the Government,

(iii)

not possess on his person during the duty, a sum exceeding thirty rupees as his personal cash. Provided that if at any

time an inspecting authority finds more than the said sum of Rs. 30/- on the person of a ticket collector, it shall be presumed that such sums belong to the Government,

(iv)

record his personal cash on his person on the Right Hand Top of the statement of daily traffic earnings under his own signature with date,

(v)

subject himself for physical check; by the inspecting authority when so required by it,

(vi)

behave courteously with the general public,

(vii)

not be in on intoxicated condition while on duty.

5.

Duties of Inspecting Authority.

- Inspecting Authority may, at any time, enter a ticket issuing booth or a public ferry to satisfy itself as to whether the tickets are being issued properly or not.

(2)

Inspecting authority may at any time enter any public ferry and demand from any person found in any such ferry to produce the ticket purchased by him for his journey.

6.

Power to remove person from public ferry.

- Any person who travels or attempts to travel in public ferry without any proper Pass or ticket will him or who being in a public ferry fails or refuse to present for examination or to deliver up his Pass or ticket immediately on requisition being may therefor by an inspecting authority, may be removed from the public ferry by such inspecting authority or by any other person whom such inspecting authority may call to his aid, unless such person pays the spot, the toll fixed as also the penalty prescribed under section 10.

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